UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF LOUISIANA
ALEXANDRIA DIVISION

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| KIM CARLSON LEWIS, et al.,<br>Plaintiffs,<br>VERSUS<br><br>HARRIS COUNTY, TEXAS, et al.,<br>Defendants. | *<br>*<br>*<br>*<br>*<br>*<br>* | CIVIL ACTION NO. 1:26-cv-00172<br>JUDGE DRELL<br>MAGISTRATE JUDGE PEREZ-MONTES<br><br><br>JURY TRIAL REQUESTED |

**MEMORANDUM IN SUPPORT OF RULE 12(B)(6) MOTION TO DISMISS LASALLE CORRECTIONAL CENTER, L.L.C., LASALLE MANAGEMENT COMPANY, L.L.C., AND LASALLE CORRECTIONS, LLC**

MAY IT PLEASE THE COURT:

Plaintiffs, Kim Carlson Lewis, as Personal Representative of Erik Carlson, deceased, and on her own behalf, and Lindsey Gratehouse, on behalf of her minor child M.G. ("Plaintiffs"), have filed suit against Defendants, LaSalle Correctional Center, L.L.C. ("LCC"), LaSalle Management Company, L.L.C. ("LMC"), and LaSalle Corrections, LLC ("LC") (collectively the "LaSalle-branded Entities"). Pursuant to Fed. R. Civ. P. 12(b)(6), and for the reasons set forth below, the LaSalle-branded Entities respectfully request the Court to enter an order dismissing all Plaintiffs' claims brought against them, with prejudice.

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## BACKGROUND

### I. Factual background.

This is a civil rights lawsuit arising from the death of pretrial detainee Erik Carlson. According to Plaintiffs' Complaint, Erik Carlson died from complications related to a peritonsillar abscess due to a strep throat infection. Plaintiffs have brought suit against LCC, LMC, and LC alleging entitlement to damages, punitive damages, and attorney fees, costs, and interest for alleged violations of federal law, including 42 U.S.C. § 1983, and state law.

Plaintiffs are:

(1) Kim Carlson Lewis, the mother of Erik Carlson, who brings this lawsuit as Personal Representative of Erik Carlson, and on her own behalf; and

(2) Lindsey Gratehouse, the mother of Erik Carlson's minor child M.G., who brings this lawsuit on behalf of M.G.

Plaintiffs allege Erik Carlson was arrested on January 5, 2025, in Houston, Texas. He was transferred to LaSalle Correctional Center in Olla, Louisiana on Friday, January 17, 2025. At an unspecified time, Mr. Carlson allegedly started to feel sick with a sore throat. This sickness purportedly progressed over the next few days and his condition continued to deteriorate. Plaintiffs allege that Mr. Carlson filled out two sick call requests and was taken to be evaluated by the nurse at the Olla facility's clinic on January 24, 2025. At that time, the clinic nurse called for Mr. Carlson to be taken to the emergency room at LaSalle General Hospital for further treatment of his condition. After initial treatment at LaSalle General Hospital, Mr. Carlson was scheduled to be transferred to another hospital to receive a higher level of care. During his transfer by ambulance, Mr. Carlson suffered cardiac arrest and was declared deceased shortly after midnight on January 25, 2025.

**II. Plaintiffs' claims against the LaSalle-branded Entities.**

Plaintiffs allege liability of LCC, LMC, and LC under federal law, including 42 U.S.C. § 1983, and state law. Plaintiffs allege LCC is a private entity that owns and operates the LaSalle Correctional Center in Olla, Louisiana—the subject facility in this suit. Plaintiffs allege LMC is a private entity responsible for the operations and employees at "various LaSalle facilities," including LaSalle Correctional Center. Plaintiffs allege LC is a private entity that "maintains, manages, and operates at least eighteen jails throughout the states of Louisiana, Texas, Mississippi, and Georgia," including LaSalle Correctional Center. Plaintiffs refer to these three limited liability companies as "LaSalle" in their Complaint.

In their complaint, Plaintiffs' list four separate causes of action. Cause of Action I is brought against the "Monell Defendants," which is specifically alleged against the LaSalle-branded Entities. Cause of Action II is brought against the "Supervisor Defendants" and is not alleged against the LaSalle-branded Entities. Cause of Action III is brought for "Fourteenth Amendment Deliberate Indifference" and is not alleged against the LaSalle-branded Entities. Cause of Action IV is brought against all defendants for "Wrongful Death."

**LAW AND ARGUMENT**

Plaintiffs' Complaint lacks sufficient factual allegations to state a plausible claim against either LCC, LMC, or LC. Plaintiffs failed to plead a plausible Monell liability claim against the LaSalle-branded Entities, the only potential source of liability under § 1983. Furthermore, Plaintiffs' state law claims for wrongful death are conclusory and lack the requisite supporting factual allegations to sufficiently state a plausible claim against either LCC, LMC, or LC. Additionally, pursuant to Fed. R. Civ. Proc. 10(c), LCC, LMC, and LC incorporate by reference the arguments raised in the "Rule 12(b)(6) Motion to Dismiss Plaintiff, Kim Carlson Lewis and Claims for Punitive Damages Under State Law" filed by Defendants in this matter.

**I. Legal Standard.**

Pursuant to Federal Rule of Civil Procedure 12, a defendant may move the Court to dismiss a plaintiff's complaint for failure to state a claim upon which relief can be granted. Fed. R. Civ. Proc. 12(b)(6). "To survive a motion to dismiss, a complaint must contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face." *Johnson v. Harris County*, 83 F.4th 941, 945 (5th Cir. 2023) (citations omitted). A claim has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (citing *Bell Alt. Corp. v. Twombly*, 550 U.S. 544, 556 (2007)).

The standard for the adequacy of pleadings seeking to state a claim for relief is governed by Rule 8(a), which requires that a pleading contain a short plain statement of the claim showing that the pleader is entitled to relief. Fed. R. Civ. P. 8(a)(2). To survive a Rule 12(b)(6) motion to dismiss, the complaint "must provide the plaintiff's grounds for entitlement for relief—including factual allegations that, when assumed to be true, raise a right to relief above the speculative level." *Ruiz v. Brennan*, 851 F.3d 464, 468 (5th Cir. 2017). "Threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). In evaluating the sufficiency of a complaint, Courts must accept all factual allegations as true, but Courts do not need to accept "conclusory allegations, unwarranted factual inferences, or legal conclusions" as facts. *See Alvarado v. CITGO Petro. Corp.*, No. 25-40455, 2026 U.S. App. LEXIS 6463, at *3 (5th Cir. Mar. 4, 2026) (internal quotations omitted). Naked assertions devoid of further factual enhancement do not survive a motion to dismiss. *Johnson*, 83 F.4th at 945 (citations omitted).

**II. Plaintiffs failed to sufficiently plead a plausible claim under 42 U.S.C. § 1983.**

The only § 1983 claim that Plaintiffs allege against LCC, LMC, or LC is contained in Cause of Action I, which is brought collectively against the three entities, which Plaintiffs label "LaSalle." Plaintiffs' Cause of Action I is brought pursuant to a theory of "Monell Liability."

Plaintiffs' Monell liability claims against LCC, LMC, and LC are insufficiently pled to state a plausible claim for relief.

A Monell defendant is almost never liable for an isolated unconstitutional act on the part of an employee; it is liable only for acts directly attributable to it through some official action or imprimatur. *Thomas v. Gilley*, No. 3:22-06174, 2023 U.S. Dist. LEXIS 181030, at *28 (W.D. La. Sep. 20, 2023), adopted by 2023 U.S. Dist. LEXIS 180299 (W.D. La. Oct. 5, 2023) (quotations omitted). To establish Monell liability under § 1983, a plaintiff must show that (1) an official policy or custom (2) promulgated by the policymaker (3) was the moving force behind the violation of a constitutional right. *Peterson v. City of Fort Worth*, 588 F.3d 838, 847 (5th Cir. 2009) (citing *Piotrowski v. City of Houston*, 237 F.3d 567, 578 (5th Cir. 2001)). Plaintiffs failed to sufficiently plead all three elements of their Monell claim.

Plaintiffs impermissibly group three separate defendants together and make collective allegations against that group in an attempt to establish the existence of an unconstitutional custom. Not only is this type of "group pleading" insufficient to support § 1983 claims, the alleged "examples" of the purported custom are neither sufficiently similar nor sufficiently numerous to plausibly establish an unconstitutional custom for purposes of Monell liability. Further, Plaintiffs failed to sufficiently plead that a policymaker promulgated or ratified the alleged unconstitutional custom. Likewise, Plaintiffs failed to sufficiently plead factual allegations to establish the causation element, i.e., that the purported policy or custom was the "moving force" behind the alleged constitutional violation. Plaintiffs' conclusory allegations and threadbare recital of the Monell liability elements do not suffice to state a plausible claim for relief against LCC, LMC, or LC. *See Iqbal*, 556 U.S. at 678.

***A. Plaintiffs' practice of group pleading claims against LCC, LMC, and LC is insufficient to support a plausible claim for § 1983 liability.***

Plaintiffs' § 1983 claims must be sufficiently pled against each separate defendant. In Plaintiffs' Complaint, they collectively refer to LCC, LMC, and LC as "LaSalle" and make

allegations of collective responsibility against the group. Such allegations of collective responsibility are insufficient to support a plausible claim for Monell liability.

In § 1983 actions, a plaintiff must specifically plead how each defendant, through that defendant's own actions, violated the constitution. *Armstrong v. Ashley*, 60 F.4th 262, 274-75 (5th Cir. 2023) (quotations omitted). Courts may "disregard bare assertions of collective responsibility, unsupported by concrete factual allegations." *Martinez v. City of N. Richland Hills*, 846 F. App'x 238, 243 (5th Cir. 2021). A plaintiff's allegations against "a group without factual material suggesting that any particular defendant [violated the constitution]" are "independently insufficient" and should be dismissed accordingly. *See Armstrong*, 60 F.4th at 274-75.

Plaintiffs only allege that LCC owns and operates the Olla facility; that LMC is responsible for operations and employees at various facilities, including the Olla facility; and that LC maintains, manages, and operates at least eighteen facilities, including the Olla facility. Plaintiffs do not make any other specific allegations against either LCC, LMC, or LC. The remainder of Plaintiffs' allegations against the three entities are collective allegations made against the group that Plaintiffs label "LaSalle." Plaintiffs' Monell liability claims are "based on a theory of collective responsibility [and] cannot withstand a motion to dismiss." *Martinez*, 846 F. App'x at 243.

***B. Plaintiffs failed to plead sufficient facts to support their allegation that an unconstitutional policy or custom existed at LaSalle Correctional Center.***

To successfully plead a claim for Monell liability, Plaintiffs were required to plead factual allegations that, if proven true, would establish the existence of an unconstitutional policy or custom. "The Supreme Court has held that 'recovery from a municipality is limited to acts that are, properly speaking, acts of the municipality—that is, acts which the municipality has officially sanctioned or ordered.'" *Edwards v. City of Balch Springs, Texas*, 70 F.4th 302, 308 (5th Cir. 2023) (emphasis in original) (quoting *Pembaur v. City of Cincinnati*, 475 U.S. 469, 480

(1986)).

Moreover, "each and any policy which allegedly caused constitutional violations must be specifically identified." *Piotrowski v. City of Houston*, 237 F.3d 567, 579 (5th Cir. 2001). In their Complaint, Plaintiffs allege the existence of one official policy as well as an alleged unconstitutional custom. However, Plaintiffs do not allege that the identified "official policy" is itself unconstitutional, and Plaintiffs do not support their allegation of an unconstitutional custom with sufficient factual support to state a plausible claim.

In § 1983 actions alleging Monell liability, a plaintiff can establish a policy by showing one of two things: an officially adopted and promulgated policy, or a persistent, widespread practice that is so common and well settled as to constitute a custom. *Armstrong*, 60 F.4th at 276 (quoting *Webster v. City of Houston*, 735 F.2d 838, 841 (5th Cir. 1984) (en banc)).

*[The block quotation of Armstrong, 60 F.4th at 276, the rest of Part II.B (filed pages 11 to 13), Parts II.C to II.F (filed pages 13 to 15) and Part III (state law claims) are not transcribed.]*

## CONCLUSION

For the reasons set forth above, Defendants, LaSalle Correctional Center, L.L.C., LaSalle Management Company, L.L.C., and LaSalle Corrections, LLC respectfully move the Court to enter an order dismissing all claims by Plaintiffs, Kim Carlson Lewis, as Personal Representative of Erik Carlson, deceased, and on her own behalf, and Lindsey Gratehouse, on behalf of her minor child M.G., with prejudice.

Dated: April 16, 2026

Respectfully submitted,

/s/ Ryan G. Lavelle
Deirdre C. McGlinchey, T.A. (24167)
dmcglinchey@joneswalker.com
T. Gregory Schafer (24635)
gschafer@joneswalker.com
Ryan G. Lavelle (41305)
rlavelle@joneswalker.com
JONES WALKER LLP
201 St. Charles Ave.
New Orleans, Louisiana 70170
Telephone: (504) 582-8000
Facsimile: (504) 582-8583

ATTORNEYS FOR LASALLE CORRECTIONAL CENTER, L.L.C., LASALLE MANAGEMENT COMPANY, L.L.C., AND LASALLE CORRECTIONS, LLC

**CERTIFICATE OF SERVICE**

I certify that on April 16, 2026, a copy of this pleading was filed electronically with the Clerk of Court using the CM/ECF system which will send notification to all counsel of record.

Respectfully submitted,

/s/ Ryan G. Lavelle
RYAN G. LAVELLE